Mr. Michael O. Foster
Director, Motor Vehicle Service
American Postal Workers Union, AFL-CIO
1300 L Street, NW
Washington DC 20005

RE: Q18V-4Q-C 21001475/HQTV20200455
Class Action
Washington, DC 20260-4100

Dear Mike:

Recently our representatives met to discuss the above captioned grievance at Step 4 of the grievance arbitration procedure. The issue presented in this case is whether the Postal Service has violated the October 23, 2019 Settlement Agreement in case number Q15V-4Q-C 18046276/HQTV20170529 ("October 23 Agreement"), the May 15, 2020 Settlement Agreement in case number Q10V-4Q-C 16367308/ HQTV20160209 ("May 15 Agreement"), and Article 5 and Article 19 of the National Agreement by permitting or authorizing its contractor, Caduceus USA Medical Services ("Caduceus"), to:

1) compel employees holding a commercial driver's license (CDL) as a requirement of their position (hereafter referred to as "employees") to sign medical record release forms at their mandatory Department of Transportation (DOT) physical examinations;
2) subject employees to additional levels of medical review even after a medical examiner finds them medically fit;
3) withhold medical examiner certificates from employees; and,
4) require interstate medical examiner certificates in states where they are not required.

The parties agree to resolve this case based on the following understanding:

> The Postal Service follows Department of Transportation (DOT) and Federal Motor Carrier Safety Administration (FMCSA) regulations regarding the administration of physicals for employees holding a CDL as a requirement of their position. The Postal Service has used the term "parallel" or "follow"; the parties understand that this does not represent a change in policy.

The Parties agree to abide by the terms of the October 23 Agreement. Employees will not be required to sign a medical record release to receive a DOT physical. The FMCSA does not require the medical examiner to provide a copy of the medical examination report to the employer.

In accordance with the October 23 Agreement, upon completion of the DOT physical by a certified medical examiner, if the employee is found medically fit, no further review will be required.

The Postal Service will require DOT/FMCSA certified examining physicians to provide employees the determination of their exam upon completion and to issue a new medical examiner certificate to the employees if they are medically cleared to drive.

In accordance with the May 15 Agreement, "USPS drivers holding a CDL are required to self-certify to their state that they operate or expect to operate in 'excepted interstate commerce' in accordance with 49 CFR part 383.71(b)(1)(ii) which will result in PVS drivers being exempt from the interstate requirements."

Each state has its own procedure for completing the self-certification process, so USPS applicants/employees with an intrastate CDL should be directed to their local Department of Motor Vehicles or their state's equivalent for appropriate guidance. Additionally, these individuals are still bound by their state's medical requirements regarding intrastate CDL licensing. The Postal Service will not require DOT physicals where they are not required under the applicable state intrastate standards provided the MVS employee has completed the self-certification process as outlined above.

The Parties agree and acknowledge the Postal Service's commitment to follow FMCSA and DOT regulations for CDLs and to not promulgate policies that violate the Step 4 settlements in Cases No. Q15V-4Q-C18046276/HQTV20170529 (October 23, 2019) and Q10V-4Q-C16367308/HQTV20160209 (May 15, 2020) or this Settlement Agreement.

The Parties further agree that any future changes to the Postal Service administration of the DOT and FMCSA regulations which directly relate to wages, hours, or working conditions will be done in accordance with Article 19 of the National Agreement.

The parties will meet at the national level at least once every six months, or at either party's request, for the purpose of discussing any issue or changes related to the DOT standards that impact employees.

Shannon Richardson
Director, Labor Relations
Contract Administration (APWU)
United States Postal Service

Michael O. Foster
Director, Motor Vehicle Service
American Postal Workers Union,
AFL-CIO

Date: September 21, 2021